IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPEAL NO. 789 OF 2022

STATE OF MAHARASHTRA ... Appellant / Prosecution
Versus
VIKRAM DESHMUKH ... Accused / Respondent

CORAM:
HON'BLE MS. JUSTICE S.A. PATIL

JUDGMENT

1. This appeal by the State of Maharashtra is directed against the judgment of acquittal dated 15th March 2022 passed by the learned Additional Sessions Judge, Pune.

2. The respondent Vikram Deshmukh was prosecuted for offenses punishable under Section 420 IPC and Section 406 IPC for alleged fraudulent inducement and criminal breach of trust relating to an investment scheme.

3. The statement of the accused was recorded under Section 313 CrPC wherein he pleaded total innocence and alleged commercial rivalry.

4. The prosecution examined seven witnesses to establish the charges under Section 420 IPC.
5. The crucial question before this Court is whether the prosecution proved dishonest intention at the inception of the transaction beyond reasonable doubt.
6. A careful reading of the evidence indicates that the dispute is essentially of a civil nature regarding business returns and lack of proof of deception.
7. FINAL ORDER:
There is no perversity or illegality in the findings of the learned Trial Court.
The Criminal Appeal filed by the State is dismissed. The acquittal of respondent Vikram Deshmukh under Section 420 IPC and Section 406 IPC is affirmed.